UNITED STATES TAX COURT

Dana L. Example Mira T. Example	)	
Petitioners,	)	
v.	)	Docket No. _____
COMMISSIONER OF INTERNAL REVENUE,	)	
Respondent.	)	

PETITION

Petitioners hereby petition for a redetermination of the deficiency set forth by the Commissioner of Internal Revenue in the notice of deficiency dated March 3, 2026, and as the basis for their case allege as follows:

1. Petitioners are Dana L. Example and Mira T. Example, individuals who reside in Oakridge, Oregon. Their State of legal residence is Oregon. Their mailing address is 000 Sample Road, Oakridge, Oregon 00000.

2. The return for the period here involved was filed with the Internal Revenue Service at Fresno, California.

3. The notice of deficiency, a copy of which (including the statement showing the computation of the deficiency) is attached and marked Exhibit A, is dated March 3, 2026. It was issued by the Internal Revenue Service office in Fresno, California. The name of each petitioner is the same as the name shown on the notice of deficiency.

4. The deficiency as determined by the Commissioner is in federal income tax for the taxable year 2023 in the amount of $18,420.00. The Commissioner also determined an accuracy-related penalty under section 6662 in the amount of $3,684.00. Petitioners dispute the entire determination. The amount in dispute is $22,104.00.

ASSIGNMENTS OF ERROR

5. The Commissioner erred as follows:

(a) In determining that petitioners had unreported gross receipts of $61,200.00 in 2023 from a sole proprietorship, the Commissioner erred. The amount of gross receipts that petitioners received in 2023 is correctly stated in the petitioners' books and records.

(b) In disallowing a deduction for ordinary and necessary business expenses of $27,350.00 claimed on Schedule C for 2023, the Commissioner erred.

(c) In determining that petitioners are liable for the accuracy-related penalty under section 6662(a), the Commissioner erred. Petitioners had reasonable cause and acted in good faith within the meaning of section 6664(c).

(d) In determining that the period of limitations on assessment under section 6501 had not expired, the Commissioner erred, and the notice of deficiency is therefore untimely as to the year 2023.

STATEMENT OF FACTS

6. The facts upon which petitioners rely, as the basis of their case, are as follows:

(a) Petitioners operated a bookkeeping business as a sole proprietorship during 2023 under the name Example Books. Dana L. Example kept the business books.

(b) Petitioners' business records for 2023 include bank statements for every month of the year, invoices issued to customers, and a general ledger prepared from those records.

(c) The invoices to customers for 2023 total $61,200.00 or less, and each of them is recorded in the general ledger.

(d) The expenses claimed on Schedule C for 2023 were paid during 2023 and are supported by receipts, canceled checks, and the bank statements described in subparagraph (b).

(e) Petitioners filed their 2023 return on April 15, 2024. The return was timely filed, and the notice of deficiency was mailed more than three years after that date.

(f) Petitioners relied in good faith on a return preparer who was engaged for the 2023 year and who was given all of the business records described above.

7. Special matters required by Rule 39 are not raised by this petition. Petitioners have no affirmative allegations of fraud, and they do not plead any matter that is the burden of the Commissioner to establish, except as stated in paragraph 5(c) and the facts above.

8. Petitioners request the following relief:

WHEREFORE, petitioners pray that the Court (1) determine that there is no deficiency in federal income tax for the taxable year 2023; (2) determine that petitioners are not liable for the accuracy-related penalty under section 6662(a); (3) determine that the notice of deficiency is barred by the period of limitations, if the Court so finds; and (4) grant such other and further relief as the Court deems just and proper.

Dated: October 6, 2026

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